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Case Name: Sampath Putta v. Leslie Henry et al.

Case No.: 24CV452177

This is an action brought by self-represented plaintiff Sampath Ram Kumar Putta (Putta), arising from the alleged failure to disclose an existing lien on real property purchased by Putta located at 1268 McGuinness Avenue, San Jose, CA, 95127 (the Property). The original defendants were Chicago Title Company (CTC), Tiffany Dimond, Elina Lee, Michael Tran, and Leslie Henry.

Putta filed a small claims action against Lee (and attempted, but failed, to serve Henry in the same case) in 2023, based on a “lien undisclosed on the Property.” (Santa Clara County Superior Court, case no. 23SC090168 (the “Small Claims Matter”). The small claims court dismissed Henry and entered judgment in October 2023 in favor of Lee, after hearing testimony from Tran as a witness.

The original complaint in this case was filed in November 2024. A first amended complaint (FAC) was filed in February 2025, alleging three causes of action: (1) negligence (against CTC and Dimond); (2) fraudulent concealment (against all defendants); and (3) breach of fiduciary duty (against Tran and Lee).

CTC and Dimond filed a demurrer to the FAC’s first and second causes of action and a motion to strike portions of the FAC. Lee filed a separate demurrer to the second and third causes of action. And Tran filed a separate demurrer to the second and third causes of action. The court (Judge Chung) sustained CTC and Dimond’s demurrer with leave to amend. The court granted in part and denied in part their motion to strike. The court sustained Lee’s demurrer without leave to amend. The court overruled Tran’s demurrer to the second and third causes of action as alleged against him, noting that he failed to support his arguments with legal authority and relied almost entirely on extrinsic evidence. (See Sept. 2, 2025 order at pp. 17:7-18:15.)

The court takes judicial notice of the October 11, 2023 minute order and judgment from the small claims court and Judge Chung’s September 2, 2025 order on its own motion. (Evid. Code, § 452, subd. (d).)

The operative second amended complaint (SAC) was filed in September 2025. The SAC alleges five causes of action: (1) negligence (against CTC and Dimond); (2) negligent representation (against CTC and Dimond); (3) fraudulent concealment (against CTC and Dimond); (4) fraudulent concealment (against Tran); and (5) breach of fiduciary duty (against Tran). Putta later dismissed CTC and Dimond as defendants, leaving Tran as the only defendant.

At issue is self-represented Tran’s demurrer to the SAC’s fourth and fifth causes of action. This demurrer was filed in November 2025. Putta filed an opposition at the end of April 2026. After the opposition was filed, Tran filed an “amended” demurrer and request for judicial notice on May 8, 2026. Because parties have no ability to amend filed motions without leave of court, the court has not considered Tran’s amended papers.